

Court No. - 3

Case :- WRIT - C No. - 2193 of 2023

Petitioner :- R G Residency Apartment Owners Association

Respondent :- Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Vaibhav Kaushik

Counsel for Respondent :- Abhishek Srivastava

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Supplementary affidavit filed today is taken on record.
2. Heard Shri Vaibhav Kaushik, learned counsel for the petitioner and Shri Abhishek Srivastava, learned counsel for the respondent nos. 1 and 2.
3. This writ petition has been filed praying for the following reliefs:-

"A. Issue a writ, order or direction in the nature of mandamus, against the respondents, refraining them from commencing or installing or make any further changes in electricity infrastructure in connection with implementation of multi-point meter installation in the petitioner society till the petitioner concludes for an option of 51% consent available as per UP Electricity Regulatory Commission's Order dated 08.05.2020 as well as the Electricity Supply Code, 2005, wherein the consent of residents shall be obtained for the above activity to stand remain on single-point connection or to migrate to multipoint connection as prescribed, within a stipulated period of time as the Hon'ble High Court may deem fit.

B. Issue a writ, order or direction in the nature of Mandamus, Commanding the respondents to refrain from initiating the process of the multi-connection prior to mandatory Electricity Infrastructural Audit within the campus of the Petitioner Society through a licensee agency or any other authorized third-party agency having professional competency.

C. Issue a writ, order or direction in the nature of Mandamus, Commanding the respondents to first decide the representation dated 4.1.2023 within the stipulated period before initiating any process of multi-point connection.

D. In addition to or in substitution above, to grant such other and further relief in favour of the petitioner society, which this Hon'ble Court may deem just and proper in the interest of justice."

4. Learned counsel for the respondent nos.1 and 2 states that the

grievance of the petitioner for grant of time to obtain consent shall be considered by the respondent no.2 in accordance with law within two weeks and an appropriate order for granting time shall be passed within two weeks.

5. In view of the statement made by the learned counsel for the respondent nos.1 and 2, this writ petition is **disposed of** in terms of the statement aforementioned.

Order Date :- 27.1.2023

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